

Hearing and Case Information

1. Date child taken into protective custody: 09/06/2025 Date of report: 09/08/2025
- Was child taken into protective custody by Protective Custody Order? No
- Shelter hearing date: 09/08/2025
- ODHS case name: Al-quan Davis ODHS case #: 1007213
- ODHS case worker: Nicole Bennett Phone #: 503 646 7234

Child Information

2. Name: Al-mira Amira Jazmine Davis DOB: 06/23/2011
- Address: 1605 SE Maple St. D35, Hillsboro, OR 97123

Parent Information

3. ☒ Mark those who have legal custody (prior to Child Welfare involvement).
Complete "other" for a guardian or another legal parent not otherwise identified.
- ☒ Mother's name: Ashle Antoinette Penn DOB: 02/15/1988
Address: 17458 NW Springville Rd. Apt. 9, Portland, OR 97229
- ☒ Father's name: Al-quan Adam Davis DOB: 09/04/1978
Address: 1605 SE Maple St. D35, Hillsboro, OR 97123
- ☐ Other's name: DOB:
Address:
- Relationship to child:

Hearing Notifications

4. ☒ Mark those who were notified of the time, date and place of the hearing. If not notified, explain why and list efforts made to identify and obtain contact information for, and notify the following of the hearing.
- ☒ Mother If not, why?
- ☐ Maternal Grandfather If not, why?
- ☐ Maternal Grandmother If not, why?
- ☒ Father If not, why?
- ☐ Indian Custodian If not, why?
- ☐ Paternal Grandfather If not, why?
- ☐ Paternal Grandmother If not, why?
- ☐ Other (as identified above) If not, why?
- ☐ Tribe(s) (if applicable) If not, why?

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ODHS History

5. List prior ODHS contacts with family or child:

Please see attached

Protective Custody

6. The Department believes protective custody of the child is necessary and the least restrictive means available to:

☒ Mark those that apply.

☒ A. Protect the child from abuse;

☐ B. Prevent the child from inflicting harm on self or others;

☒ C. Ensure the child remains within the reach of the juvenile court to protect the child from abuse or prevent the child from inflicting harm on self or others; or

☐ D. Prevent imminent physical damage or harm to the child if there is reason to know the child is an Indian child; or

☐ E. Ensure suspicious injuries were photographed and a medical assessment was conducted in accordance with ORS 419B.023(2).

7. List the facts and circumstances describing why taking protective custody of the child is necessary and least restrictive means available to ensure child safety:

On 9/6/25, Almira Davis DOB 6/23/11 was taken into Protective Custody by Law enforcement. Almira Davis is the biological daughter of Alquan Davis and Ashle Penn and Almira has been staying between both parents homes, but is reported to be staying primarily with her father presently.

There is a current ODHS CW assessment open dated 7/31/25 regarding allegations of physical abuse toward Almira by her mother that is pending.

ODHS was informed that on 9/06/25 mid-morning, there was an altercation between Mr. Davis and his daughter Almira. Reporter stated Almira walked out of the apartment to step away from her dad to give them each some space to "cool off." Alquan followed Almira out into the parking lot of their apartment complex. Alquan was yelling at Almira and started chasing after her. Almira called 911 asking for help. Dispatch could hear Almira telling Alquan to stop that he is hurting her, Dispatch could hear Alquan yelling at Almira, then multiple 911 calls came into dispatch. One caller stated that an adult male was observed punching a female juvenile in the backseat of a car, another caller reported an adult male was dragging a female juvenile out of the car, then another caller stated adult male was strangling juvenile female on the ground by the backdoor of a car. Reporter stated with the multiple calls that came in dispatchers could hear different things, one heard Almira say she "can't breathe" another could hear Alquan yelling at Almira, another initially heard Almira telling Alquan to leave her alone.

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Per reporting party, Alquan was seen punching Almira and then started strangling her when she was on the ground. Reporter stated there is video footage from different angles that Law Enforcement is reviewing. It is reported that Mr. Davis was arrested a few months ago for criminal mistreatment for assaulting Almira. Reporter stated that there was a no contact order between Alquan and Almira but that was recently lifted, and Almira is back in the home.

Following the call for requested assistance by Law Enforcement, ODHS CPS worker Nicole Bennett learned that Almira was being transported via medical transport to Randall's Children's Hospital for evaluation for Karly's Law and made plans to meet the child and Law Enforcement there. Efforts were made by Law Enforcement to contact Ms. Penn; however, those efforts were unsuccessful, and Almira had no legal guardian to consent for treatment based on her father's arrest.

Upon initial contact with Almira, she was declining to have the medical examination performed, and was only minimally responsive to interview attempts by ODHS. Almira refused for the agency or LEA to take pictures of her neck area. Almira also refused to have a SANE kit completed for the strangulation concerns. Throughout workers time at the hospital Almira was very disengaged and guarded with worker and LEA and spoke very little with either unless asked a direct question and even then, gave short and guarded answers. Almira was noted to be extremely protective of her father and wanted him and wanted him released from jail immediately and for her to go home with him that day.

When Almira was informed that ODHS was attempting to contact her mother to release her to her care, she expressed concern about being in her mother's care. After the child was interviewed by the hospital social worker, it was learned that there were concerns for Almira's mental health and self-harm leading to the hospital recommendation to admit her for further evaluation. Given that there was no legal parent to consent or for Law Enforcement to release protective custody to agency took protective custody of the child Almira when LEA left the hospital leaving child unattended except for Child welfare as the father was in jail and the mother had not been located at that time.

ODHS attempted to call Ms. Penn at number provided by Almira, but the number was not accurate. Worker also attempted to call the number provided by LEA, but the number was not in service. Worker attempted to call Ms. Penn on a number found in CW system and noted it had the unique voicemail message that Almira described her mother's number to have. Worker attempted to call Ms. Penn on 9/6/25 at 2:39pm, 2:51pm, 3:13pm, 3:45pm, 4:46pm, 5:28pm worker also text Ms. Penn at that number at 2:54pm, 3: 52pm. ODHS also attempted to call multiple relatives and collateral sources listed in the ODHS record with no response.

During this time frame, an additional ODHS on call worker was making in person attempts at the Ms. Penn's home to locate her, discuss the concerns, and attempt to assist with transportation

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Protective Custody

to the hospital. At 3:01pm, on-call ODHS worker Wiengkhone Soumpholphakdy attempted to call Ms. Penn at #424-242-3374 but no answer. VM was left requesting a call back. At 4:26pm, on-call workers Wiengkhone Soumpholphakdy and Sydney Smith attempted in person contact with Ms. Penn at the 17548 NW Springville Rd APT 9, Portland, OR 97229 address but was not successful. Prior to knocking, a child was heard in the home. After knocking on the door, what appeared to being an unidentified female spoke to workers through the door while it was closed. They refused to identify themselves or share information about themselves besides them not being Ms. Penn. The unidentified person denied Ms. Penn being at the home or sharing other information of where she was, when she would be back, etc. Worker Soumpholphakdy advised that it was urgent that Ms. Penn was able to be spoken to as her child was in the hospital. The unidentified person did not appear to have a reaction or appear shocked. Worker Soumpholphakdy asked for Ms. Penn's contact information and the unidentified person requested for worker to leave their business card at the door which they would relay to her. Worker Soumpholphakdy attempted to get a number but was not successful and a business card was left. Further attempts to contact in the following hours by phone were unsuccessful.

Ms. Penn was finally able to be reached at 4:31pm and indicated that she was in the community and couldn't get to the hospital except by bus and that would be several hours. ODHS discussed transportation assistance for Ms. Penn to come to the hospital but then couldn't be reached again to plan for that assistance for many hours.

Eventually, Ms. Penn called the hospital directly and the call was transferred to ODHS. The mother immediately began expressing she did not want to talk to ODHS worker Bennett at that time and wanted to talk to hospital staff instead which worker Bennett explained the hospital staff member left and wasn't present but offered to wait and see if hospital staff returned. The mother began expressing that she was having an uncle- Eric Taylor come to the hospital not for the night. Ms. Penn expressed she couldn't get the time off work like she thought she could but was sending the uncle instead. ODHS worker Bennett began trying to talk about the plan, but the Ms. Penn kept cutting worker off and talking over worker Bennett and expressing that she was informed of the situation and that DHS needed to relinquish custody of Almira to her and had no reason to continue being involved. Worker tried explaining the agency needed to discuss the concerns with the Ms. Penn, but she continued talking over ODHS and saying that ODHS did not have any more grounds to have Protective Custody and needed to release her daughter into her custody since she had been contacted. Ms. Penn was uncooperative and not willing to work with worker to address the concerns or allow the additional concerns regarding Almira's disclosures of self-harm and concern for safety if returned to Ms. Penn's care. The worker offered to have on call supervisor Heather Kitto call the Ms. Penn to discuss the plan further, but Ms. Penn expressed she only wanted to communicate with the supervisor over email or written communication because she has experience with the agency and doesn't trust the agency. Ms. Penn indicated that she did not want to communicate with ODHS, and that any correspondence needed to be via email and with a supervisor.

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ODHS worker informed supervisor Heather Kitto about the conversation with the Ms. Penn and her desire to only have written communication via email. Worker also informed supervisor about the high risk note for suicidal ideation that hospital social worker Leah had informed worker about and given the concerns about the child's expressed suicidal ideation, the mother's lack of cooperation to address the safety concerns, and ongoing historical concerns regarding the family condition that the agency would maintain Protective Custody and request a Shelter Hearing on Monday.

On 9/6/25 around 6:30/7pm ODHS worker Bennett met with Almira's maternal great uncle Eric Taylor who arrived at the hospital to see Almira at the request of Ms. Penn. Mr. Taylor expressed that he does not have regular contact with the family but has seen Almira several times in 2025. Mr. Taylor expressed that Ms. Penn and Almira have a mother and daughter relationship where they love each other but have their differences. Mr. Taylor expressed that he understands that Almira prefers to stay with her dad and have visits with her mom until she doesn't get what she wants and then she does vice versa. Also at the hospital with Mr. Taylor was his brother William 'Markus' who is Mr. Taylor's brother and another maternal great uncle to Almira. William expressed that he had a falling out with the mother several years prior and hasn't seen the kids or family in 3-4 years and hasn't had any contact with the father in 6-7 years.

Worker Bennett guided both uncles to Almira's room. Worker observed as Almira began crying when they got there. When uncles asked Almira what was wrong, she covered her face as she was crying and expressed that "everything is wrong" and "my dad is in jail" and then said "it's my fault" the uncles expressed that Almira didn't need to talk about that now. Almira expressed to worker she was comfortable being alone in her hospital room with her uncles.

ODHS worker Bennett learned from hospital social worker over several conversations that Almira completed a risk assessment at hospital and was flagged as a "high risk" for SI (Suicidal Ideation) and that child had attempted to commit suicide a few days prior with a knife but refused to have her wrists/arms checked for injuries. Almira was also noted to express that she wouldn't attempt suicide if she went home with her dad but would attempt suicide if she went home with her mom. Hospital social worker informed ODHS that because of this child would be admitted to the hospital held overnight and have a full evaluation in the morning of 9/7/25. Hospital social worker later informed worker Bennett that she again spoke with Almira after the uncles left the room and learned that Almira was very upset with the hospital because her mom called and confronted her about herself harm statements. Almira then told staff that she did not make these statements. The social worker reiterated to Almira about her previous statements made regarding self-harm and Almira said she had attempted to kill herself before at her mother's home. Hospital social worker expressed to Worker Bennett that she was not what child said initially and worried the change in statements was due to the mother's reaction toward Almira over the phone.

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Worker Bennett again spoke to the visiting relatives as they were getting ready to leave the hospital and they expressed that the mother was very upset with the agency because someone told her that Almira said she would kill herself if she went home with her mother. The relatives expressed that the mother was upset about this, and Almira immediately told her mother she didn't say that, but her mother wanted to go in depth and talk about everything and the uncles had to stop her because the hospital was not the place to do that.

On 9/6/25 around 8:25pm ODHS worker Nicole Bennett spoke with Almira again and Almira expressed that she was unhappy with ODHS because they lied to her mom and her mom told Almira that the agency told her that the reason she couldn't go home with her mom was because Almira said she would kill herself if she went home with her mom and Almira said that she did not say this. Almira expressed that she feels safe with her dad and stated that "He is not a violent person." Almira then went on to say if she couldn't go home to her dad she wanted to go home with her mom. Almira then stated, "My dad is not a bad person and neither is my mom".

ODHS Supervisor Heather Kitto emailed Ms. Penn at an email address listed in a prior CPS assessment requesting to communicate about Almira, to discuss the protective custody as well as the current allegations and whether there were any other relatives or supports that ODHS could consider for Almira at discharge. Ms. Penn did not respond to the email but did text ODHS on 9/7 asking where Almira was and that she had called the hospital but was told that Almira was no longer there. Ms. Penn was advised that Almira was still at the hospital and that ODHS worker Bennett was at the hospital with her and encouraged that she reaches out directly to the worker with Almira at the hospital for updates. Hospital staff report that Ms. Penn continued to call the hospital staff and hospital security throughout the morning of 9/7 and was very escalated.

On 9/7, ODHS Supervisor Heather Kitto texted Ms. Penn that her contact with Almira on this date would not be occurring due to concerns about her escalated communication, that Almira was undergoing further mental health and safety evaluations presently and that contact would be discussed further at and following the shelter hearing on 9/8.

While at the hospital on 9/7, Almira was slightly more open to talking with ODHS and was interviewed briefly about family circumstances. Almira expressed that what happened yesterday doesn't happen often and said something like that only happens every two months or so. Almira expressed that incidents like on 9/6 happen because its "fire against fire" and described this as both people are mad when arguing/fighting. Almira expressed that her father never intends to hurt her. Almira noted that usually there is little arguments or "fires" that lead up to the big incidents. Almira expressed that her dad always says sorry after he accidentally hurts her and tells her he didn't mean to. Almira expressed that the physical self harm ended a while ago and hasn't happened in a while. Almira expressed her dad does yell and scream at her sometimes but apologizes after. Almira expressed that when she and her dad apologize they talk about

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Protective Custody

ways to do it differently the next time, Almira said the only method she could think of currently was walking away and taking space.

The Hospital reports that Almira is safe for discharge to an ODHS approved caregiver and there are plans to connect child to mental health services for support as well as safety planning recommendations for her physical environment to be free of sharps and other potential self harm hazards as Almira disclosed during the follow up mental health evaluation at the hospital that she had a clear plan for suicide via cord strangulation and attempted a few days ago via knife.

Efforts were made on 9/7 to provide notifications to both parents regarding the shelter hearing. On-call workers Wiengkhone Soumpholphakdy and Thomas Hodge called Washington County dispatch to assist with contact at Ms. Penn's residence. WCSO Deputy Carpenter and Deputy Munson responded and advised that Ms. Penn has a warrant for open felony charges and would likely be taken into custody if contact is made. On call workers attempted contact with Ms. Penn at her residence but did not get an answer. The accompanying deputies were in proximity and not at the door. Workers did not hear any evident sounds prior to knocking but heard a brief feint sound after knocking inside the home. Worker Soumpholphakdy attempted again and advised that it was a ODHS worker at the door but did not get a response. DHS form 9027 - Notice of Protective Custody was left at the door with information of the shelter hearing tomorrow.

Later this day, On-call workers Wiengkhone Soumpholphakdy and Thomas Hodge met with Mr. Davis at the Washington County Jail. Mr. Davis alluded that this was all a big misunderstanding, and that Almira is suicidal with behavioral challenges. Mr. Davis provided his perspective of the events that transpired, and denied that he abused Amira. When asked if he had concerns for his daughter while in the mother's care, he indicated that his concern surrounded her current partner. He indicated some knowledge of prior substance abuse by the mother. Workers attempted to gather any information and contacts for SSPs, but Mr. Davis was unable to provide any. He shared that he was from New Jersey and did not have anyone local for supports. Workers attempted to gather information and contacts for supports from New Jersey but Mr. Davis was unable to provide any. Workers asked for his significant other, Sue's contact information and he expressed not remembering it without his phone. Workers informed Mr. Davis of the shelter hearing on 9/8/2025 and went over DHS form 9027 – Notice of Protective Custody with Mr. Davis and he understood. DHS form 9027 was provided to the WC jail staff to provide to Mr. Davis. d

Ms. Penn shares an additional child with Mr. Davis- A. D. DOB 11/8/09 who is reported to reside primarily in Ms. Penn's care. She also has another child in her custody currently who shares a different father F. W. ODHS intervened in 2020 due to concerns of domestic violence occurring in Ms. Penn's home at which time ODHS intervened. Almira and sibling A.D. were in ODHS custody from 1/13/20-5/12/21 and were ultimately returned to the care of their father Mr.

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Davis. Half sibling F. W. was placed in ODHS custody from 2/3/20 and remained in ODHS custody until 11/29/23.

Ms. Penn currently has listed pending charges of Unlawful Possession of Methamphetamine and Theft 1st Degree from 9/2024. Mr. Davis has pending charges of Criminal Mistreatment with Almira being the victim from 2024 that corresponds with an ODHS founded case for Physical Abuse dated 3/22/24. Mr. Davis's current charges are for Criminal Mistreatment and Strangulation with Almira being the victim. At the time of this writing, he is still listed as being incarcerated at the Washington County Jail.

ODHS has significant history related to concerns of abuse and neglect toward Almira by both parents. Under Mr. Davis's ODHS case, concerns related to physical abuse and maltreatment by Mr. Davis toward Almira have been documented over numerous ODHS reports dated between 10/7/21 – current totaling in 20 calls to the hotline during this time frame, 10 of which have been assigned for CPS response and assessment. Numerous reports of concern are captured under the Ms. Penn's case from 2011- current to include concerns for neglect, threat of harm exposure to violence and concerns for substance abuse and physical abuse by Ms. Penn totaling 32 calls to ODHS with 19 of those calls being assigned for CPS assessment.

The current plan is for Almira to remain in relative resource care. While the currently identified resource is only a temporary option. ODHS has requested that Ms. Penn provide any additional relatives to be considered and a thorough review of ODHS history for other listed relatives is underway.

In review of ODHS records, ICWA inquiries have been made several times with both parents and a new ICWA 1270 inquiry was completed on 9/7 with the father, and there is no information to lead the agency to believe that the Indian Child Welfare Act applies to this child.

ODHS respectfully requests that Almira Davis be placed in the temporary care and custody of ODHS for continued placement and assurance of her safety. Given the current allegations and charges against Mr. Davis, in addition to ODHS's inability to fully assess and engage with the mother regarding her protective capacities and understanding of Almira's current mental health and expression of self-harm if she were to be in the mother's home, there is no other entity that can assure Almira's safety at this time. There is a long history of abuse allegations that require ongoing ODHS assessment and intervention.

ICWA/ORICWA Efforts

8. List efforts made to determine whether the child or the parents have any American Indian or Alaska Native ancestry, membership, and/or citizenship and the results of those efforts:

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Protective Custody Report

ICWA/ORICWA Efforts

- A. Historical efforts to determine Tribal ancestry, membership, and/or citizenship:
The parents have previously denied Native American ancestry
- B. Current efforts to determine Tribal ancestry, membership and/or citizenship:
- C. Tribal affiliation of the child and the child's parent(s) or Indian custodian:
- D. Efforts to collaborate and partner with the Indian child's Tribe/Tribes:

Efforts to Avoid Protective Custody

9. ☒ Mark one.

☐ A. Efforts made to eliminate the need for protective custody of this child and services provided to make it possible for the child to safely return home:

☒ B. No existing services could have eliminated the need for protective custody of this child because:

Due to the immediate safety concerns, placement in protective custody was the option available. Father is incarcerated on charges for which the child is the victim. Mother was not open to engaging with ODHS regarding the safety concerns and planning for the child.

Best Interests

10. Describe why protective custody is in the best interest of the child, including factors relevant to ICWA/ORICWA:

The mother does not understand the specific needs of this child and lacks skills necessary to safely parent. The mother fails to recognize the safety threats presents by the father and is unwilling or unable to protect the child from father's unsafe behaviors. The mother is involved in criminal activities which interfere with her ability to safely parent the child.

The father has engaged in a pattern of physical abuse towards the child, which places the child at risk of harm. The father is engaged in criminal activities and currently incarcerated, which interferes with his ability to safely parent the child.

Placement

11. A. Date of placement: 09/06/2025

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Placement

B. Type of placement: Relative Resource Care

C. Why this type of placement was chosen (relative/caregiver relationship/most appropriate/least restrictive, other): Placement with a relative is the least intrusive option available.

D. Does the child have siblings? ☒ Yes ☐ No

If yes, are the siblings placed together? ☐ Yes ☒ No

If the child is not placed with siblings, describe the efforts made by the Department to place siblings together: There are no siblings in care.

E. If applicable, describe how the current placement meets ICWA/ORICWA or the Tribe's established placement preferences:

F. Will the child remain in the child's School District of Origin? ☒ Yes ☐ No

If not, describe why it is not in the child's best interest to continue attending the School of Origin or any other school in the District of Origin.

Visitation

12. ODHS plan for initial visitation (each parent and siblings):

To be determined.

Finding and Orders

13. ODHS respectfully requests the Court make the following findings and orders:

☒ Mark additional case specific findings or orders that apply.

☒ The child is placed in the temporary custody of ODHS for care, placement and supervision.

☒ ODHS has made reasonable efforts or, if the Indian Child Welfare Act applies, active efforts to provide services and/or other support to prevent or eliminate the need for removal of the children from the home and make it possible for the children to safely return home, OR no services would have eliminated the need for protective custody.

☒ ODHS made ☐ active ☐ diligent efforts to notify the parent(s) or Indian custodian of the hearing.

☒ ODHS made ☐ active ☐ diligent efforts to identify, obtain contact information for, and notify all grandparents of the hearing.

☐ ODHS made active efforts to notify the Indian child's Tribe/Tribes of the basis for the removal; the time, date, and place of the hearing; and the right of the Indian child's Tribe/Tribes to participate in the hearing.

☐ It is in the child's best interest to continue in care and be placed ☐ in home or ☐ in substitute care.

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Finding and Orders

13. ODHS respectfully requests the Court make the following findings and orders:

☒ Mark additional case specific findings or orders that apply.

☐ The child's placement is the least restrictive, most family-like setting available to meet the health and safety needs of the child.

☐ ODHS made ☐ active ☐ diligent efforts to place the child with relatives and persons with whom the child has a caregiving relationship.

☐ ODHS made ☐ active ☐ diligent efforts to place siblings together.
OR

☐ It is not in the child's best interest to be placed with siblings.

☐ It is in the best interest of the child to attend the child's School of Origin.
OR

☐ It is not in the child's best interest to attend the child's School of Origin or any other school in the child's District of Origin

☒ ODHS may use and disclose records, reports, materials or documents in the record of the case or the supplemental confidential if such use and disclosure is reasonably necessary to perform its official duties related to the involvement of the child with the juvenile court.

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Child Welfare caseworker signature: _____ Date: _____

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